

		before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment and identifying the number and value of any uncashed checks and the status of any unresolved issues. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
13	JCCP 5429 Mastercorp Wage and Hour Cases	Petitioner Ninette Amaya Romero's ("Petitioner") Petition for Coordination is DENIED. The court DENIES Petitioner's Request for Judicial Notice of Declaration Of Angie Zavala in Support of Defendant MasterCorp Commercial Services, LLC's Motion to Compel Arbitration and Stay Proceedings in Romero v. MasterCorp Commercial Services, LLC, et al., filed on January 9, 2026, Los Angeles County Superior Court, Case No. 25PSCV02652, as it is not the proper subject of judicial notice. "A court may take judicial notice of the [e]xistence of each document in a court file, but cannot take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (<i>People v. Franklin</i> (2016) 63 Cal. 4th 261, 280.) Where a party does not argue that the existence of a filing, but rather asserts its content as truth, "we deny his request for judicial notice." (<i>Id.</i>) Petitioner seeks an order coordinating five actions: 1. <i>Amaya Romero v. MasterCorp, Inc., et al.</i>, Case No. 25PSCV02652, pending in Los Angeles County Superior Court ("<i>Romero</i> PAGA Action") 2. <i>Martinez v. MasterCorp Commercial Services, LLC</i>, Case No. 30-2024-01439413-CU-OE-CXC, pending in Orange County Superior Court ("<i>Martinez</i> Individual Action") 3. <i>Martinez v. MasterCorp Commercial Services, LLC</i>, Case No. 30-2025-01463889-CU-OE-CXC, pending in Orange County Superior Court ("<i>Martinez</i> PAGA Action") 4. <i>Tate v. MasterCorp Commercial Services, LLC</i>, Case No. CU0001953, pending in Nevada County Superior Court ("<i>Tate</i> PAGA Action")

	5. <i>Figueroa v. MasterCorp, Inc., et al.</i>, Case No. CVRI2502490, pending in Riverside County Superior Court ("<i>Figueroa</i> Class and PAGA Action") On December 29, 2025, Petitioner filed Notices of Submission of Petition for Coordination in all five actions. (ROA 14-18.) On December 22, 2025, the Judicial Council issued an Order Assigning Coordination Motion Judge and identifying the matter as JCCP 5429. (ROA 10.) On December 30, 2025, the Presiding Judge of Orange County Superior Court issued an Order Assigning Coordination Motion Judge and assigned the matter to Department CX103. (ROA 11.) The alleged Labor Code violations in these actions include failure to pay overtime wages, failure to provide meal periods, failure to authorize and permit rest periods, failure to pay minimum wages, failure to timely pay wages upon termination, and failure to provide complete and accurate wage statements. Additionally, four of the five actions include overlap in allegations of failure to keep complete and accurate payroll records, failure to reimburse for business related expenses, and claims under the Private Attorneys General Act of 2004 ("PAGA"). Here, the threshold requirement that all of the actions to be coordinated are complex has not been met. "A petition for coordination, or a motion for permission to submit a petition, shall be supported by a declaration stating facts showing that the actions are complex . . ." (CCP § 404.) A "complex case" is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel. (CRC, R. 3.400(a).) In deciding whether an action is a complex case . . . the court must consider, among other things, whether the action is likely to involve: (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; (2) Management of a large number of witnesses or a substantial amount of documentary evidence; (3) Management of a large number of separately represented parties;
--	---

		(4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or (5) Substantial postjudgment judicial supervision. (CRC, R. 3.400(b).) Generally, “an action is provisionally a complex case if it involves . . . [c]laims involving class actions[.]” (C.R.C., R. 3.400(c)(6).) Here, Petitioner’s PAGA Action (the <i>Romero</i> PAGA Action) has not been designated complex and there is no evidence that Petitioner ever sought to have the action deemed complex. It is undisputed that Petitioner designated her PAGA Action as "Not Complex" under Rule 3.400 of the California Rules of Court on the Civil Case Cover Sheet she filed. (Gitig Dec., Ex. 3.) California Rule of Court, Rule 3.400(c) and Los Angeles County Superior Court Local Rule 3-3(k)(8) provide and recognize that class actions are provisionally complex, but PAGA actions are not presumptively complex. Petitioner has also failed to demonstrate that her PAGA action should be deemed complex. Petitioner has not shown that her PAGA Action will require “exceptional judicial management.” (CRC, R. 3.400(a).) Petitioner vaguely asserts that her action will involve numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve, the management of a potentially large number of witnesses and a substantial amount of documentary evidence, and coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court. However, Petitioner provides no facts to support these assertions and fails to explain why Petitioner has not asked the court to deem the matter complex. Accordingly, the Petition to Coordinate is denied on the grounds that not all of the actions sought to be coordinated are complex. In addition, Petitioner has not demonstrated that coordination of these five actions would promote the ends of justice. Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel;
--	--	--

		the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.” (CCP § 404.1.) First, Petitioner has not adequately demonstrated that common questions of fact or law predominate these five actions. Petitioner offers only speculation as to the potential waste of judicial resources, and the potential for duplicative and/or inconsistent rulings. While these actions may involve similar Labor Code violations, the nature of each of these actions are distinct and Petitioner has not demonstrated that whatever overlap in questions of law and fact between them would benefit from coordination. The <i>Romero</i> and <i>Figueroa</i> actions are asserted against both Defendant MasterCorp Commercial Services, LLC (“MCS”) and MasterCorp, Inc. (“MCORP”), whereas the <i>Martinez</i> actions are asserted only as against MCS, and the <i>Tate</i> action is asserted against only MCORP. As there is no showing that these employers implement the same policies and practices, the different actions would lead to different, not common, questions of fact as to these employers. Further, the types of claims asserted in each action are distinct. The <i>Martinez</i> Individual Action only concerns individual wage and hour claims. The <i>Romero</i> PAGA Action, <i>Martinez</i> PAGA Action, and <i>Tate</i> PAGA Action concern only PAGA claims. The <i>Figueroa</i> PAGA and Class Action is the only action involving class claims. Thus, each action will involve different questions of fact and law based on the type of claim asserted. At a minimum, motion practice and the level and type of proof required will vary in each action. To the extent there is an overlap between the cases, a stay would be a more appropriate means to prevent inconsistent rulings and avoid waste of judicial resources than coordination. For example, courts have denied petitions for coordination if a case to be coordinated “was not complex,” when “common questions of fact and law did not predominate,” when one case “was at a more advanced stage in the litigation,” when “the convenience of the parties, witnesses, and counsel did not favor coordination,” when a settlement in one of the cases “would resolve th[e] case [to be coordinated],” and when “the stay of petitioners’ case meant
--	--	---

		that coordination was not required for judicial economy or to avoid duplicative rulings.” (<i>Shaw v. Superior Ct. of Contra Costa Cnty.</i> (2022) 78 Cal. App. 5th 245, 252–53 [emphasis added]; <i>see also Turrieta v. Lyft, Inc.</i> (2024) 16 Cal. 5th 664, 677 [noting that a trial court ruled that coordination would not promote the ends of justice when the actions to be coordinated were already “stayed for all purposes.”].) Second, Petitioner has not shown that the convenience of parties, witnesses, and counsel would be promoted by coordination, or that the relative development of the actions support coordination. Due to the varying procedural postures of each of these actions, coordination would not benefit these actions. There are pending motions to compel arbitration in the <i>Romero</i> PAGA Action and the <i>Figueroa</i> Class and PAGA Action. The <i>Tate</i> PAGA Action is stayed and scheduled for mediation on July 21, 2026. Most importantly for Petitioner’s PAGA Action, the <i>Martinez</i> actions have settled following mediation, and, if approved by the court, would foreclose Petitioner’s PAGA claims at least as to MCS. Third, in light of the procedural posture of each of the five actions, coordination would impede settlement rather than increase the likelihood of settlement of the actions without further litigation. Based on the foregoing, the Petition for Coordination is denied on the additional ground that it would not promote the ends of justice. Petitioner is ordered to give notice of this ruling.
14	30-2021-01195763 Redfeather vs. Embee Processing, LLC	Plaintiffs Corina Christina Redfeather, Marcelino Peralta Vallejo, and Jose Peralta Vallejo’s (collectively, “Plaintiffs”) Motion for Class Certification is DENIED. “The party advocating class treatment must demonstrate the existence of an ascertainable and sufficiently numerous class, a well-defined community of interest, and substantial benefits from certification that render proceeding as a class superior to the alternatives. . . . In turn, the community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.” (<i>Brinker Restaurant</i>